

HOUSE BILL NO. 393

INTRODUCED BY B. BARKER, C. SCHOMER, M. YAKAWICH, L. BREWSTER

A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING TOWNS TO RECORD THEIR PUBLIC MEETINGS IN AUDIO FORMAT AND MAKE THE RECORDS AVAILABLE ONLINE WITHIN 14 DAYS; AND AMENDING SECTION 2-3-214, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 2-3-214, MCA, is amended to read:

"2-3-214. Recording of meetings for certain boards. (1) Except as provided in 2-3-203 and subsection (6) of this section, the following boards shall record their public meetings in an audio and video format:

- (a) the board of investments provided for in 2-15-1808;
- (b) the public employees' retirement board provided for in 2-15-1009;
- (c) the teachers' retirement board provided for in 2-15-1010;
- (d) the board of public education provided for in Article X, section 9, of the Montana constitution;
- (e) the board of regents of higher education provided for in Article X, section 9, of the Montana constitution;
- (f) except as provided in subsection (7)(a), the governing board of a county provided for in Title 7, chapter 1, part 21;
- (g) except as provided in subsection (7)(b), the governing board of a first-class and second-class city provided for in Title 7, chapter 1, part 41;
- (h) a first-class or second-class school district board of trustees provided for in Article X, section 8, of the Montana constitution, 20-6-201, and 20-6-301; and
- (i) a local board of health provided for in Title 50, chapter 2, part 1.

(2) (a) The boards listed in subsections (1)(a) through (1)(e) shall make the audio and video recordings of meetings under subsection (1) publicly available within 1 business day after the meeting through

1 broadcast on the state government broadcasting service as provided in 5-11-1111 or through publication of
2 streaming audio and video content on the respective board's website.

3 (b) The boards listed in subsections (1)(f) through (1)(i) shall make the audio and video recordings
4 publicly available within 5 business days after the meeting with a link to the recording on the respective board's
5 website.

6 (C) THE BOARDS LISTED IN SUBSECTION (7) SHALL MAKE THE AUDIO RECORDING PUBLICLY AVAILABLE
7 WITHIN 14 BUSINESS DAYS AFTER THE MEETING WITH A LINK TO THE RECORDING ON THE RESPECTIVE BOARD'S WEBSITE

8 (D) If the A board LISTED IN SUBSECTIONS (1)(F) THROUGH (1)(I) AND (7) does not maintain a website,
9 it shall maintain a social media page and provide a link to the recording on the social media page.

10 ~~(e)-(E)~~ The department of administration may develop a memorandum of understanding with the
11 legislative services division for broadcasting executive branch content on the state government broadcasting
12 service or live-streaming audio or video executive branch content over the internet.

13 (3) For the boards listed in subsections (1)(f) through (1)(i) that maintain minutes as required by 2-
14 3-212, the audio and video recordings created pursuant to this section are not required to be the official record
15 of the meeting. If a recording is not designated as the official record, the recording may be destroyed after
16 being retained online for 1 year and is not subject to the requirements of Title 2, chapter 6, for public
17 information requests.

18 (4) A board is not required to disrupt or reschedule a meeting if there is a technological failure of
19 the meeting recording. If the recording is not able to be made available online, the board shall prominently post
20 a notice in the same manner as a notice of a public meeting and shall post a notice at all locations where the
21 meeting recording links are available. The notice must explain the reason the meeting was not recorded and
22 describe the steps taken to remedy the failure prior to the next meeting.

23 (5) The requirements of this section apply only when a board is acting on a matter over which the
24 board has supervision, control, jurisdiction, or advisory power at a public meeting as defined in 2-3-202 that has
25 been publicly noticed as required by 2-3-103.

26 (6) The requirements of this section do not apply to a board listed in subsection (1)(f) when a
27 quorum is incidentally established as described in 7-5-2122(4) and (5) solely on the basis of sharing a common
28 office space.

1 (7) The following boards must meet the requirements of this section, except that meetings may be
2 recorded, retained, and made available in audio format only:

3 (a) the governing board of a county with a population of less than 4,500; and

4 (b) the governing board of a third-class city or a town WITH A POPULATION GREATER THAN 300.

5 (8) Expenditures by a school district on staff, consultants, equipment, software licenses, storage,
6 or security made to fulfill the requirements of this section qualify as a school facility project under 20-9-525."

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